

Court No. - 21

Case :- WRIT - C No. - 34453 of 2014

Petitioner :- M/S Raja Ram Ispat Private Limited Thru' M.D. S.K. Verma

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Ashish Kumar Ojha, Radha Kant Ojha, Sunil Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

The petitioner is disputing the imposition of penalty.

Sri R.K. Ojha, learned Senior Counsel for the petitioner submits that the petitioner is prepared to pay the amount which has been found due but the penalty cannot be saddled on the petitioner as there was no fault on the part of the petitioner.

The petitioner had earlier approached this Court by filing writ petition no. 31760 of 2014 which was disposed of during summer vacations on 2nd June, 2014 with a direction to the Executive Engineer to proceed to pass appropriate orders. It is pursuant thereto that a demand has been raised against the petitioner and is now under challenge in the present writ petition.

Sri Baleshwar Chaturvedi, learned counsel for the respondent Power Corporation submits that so far as the prayer of the petitioner to fix easy installments is concerned such facility is available provided the petitioner tenders an offer to deposit the amount which is sought to be realized in terms of Paragraph 6.14 of the Electricity Supply Code, 2005. The other relief relating to penalty can be raised before the statutory forum.

Having considered the submissions raised, in the event the petitioner is disputing the factual imposition of penalty then the petitioner has the remedy of approaching the Consumer Grievance Redressal Forum in terms of Clause 7.10 of the Electricity Supply Code 2005.

Consequently, it is open to the petitioner to avail both the remedies as aforesaid and we are not inclined to entertain this petition for the said cause of action. In the event the petitioner approaches the competent authority for fixing of installments and payments, the competent authority shall pass appropriate orders on such an application and if any complaint is raised before the Forum the same shall also be decided expeditiously.

The writ petition is dismissed with the said observation.

Order Date :- 8.7.2014

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